

		"good faith through mistaken belief," and comparative negligence, respectively. In the fourth affirmative defense, defendants allege that plaintiff's agents engaged in conduct and activities that estop plaintiff from seeking relief against defendants. They allege that, among other things, plaintiff's agents made misrepresentations to them to induce them into entering into the agreement. They also allege that plaintiff's agents turned away prospective buyers who would not permit plaintiff to represent them as well as the defendants and that plaintiff did not disclose the potential dual agency to defendants or obtain their informed consent. They also allege that plaintiff's agents falsely told defendants that certain buyers were not interested in purchasing the property. These facts are sufficient to set forth an affirmative defense of estoppel. The sixth affirmative defense alleges that the second cause of action in the complaint is barred if defendants are correct with respect to their allegations that plaintiff "engaged in the conduct referenced in several affirmative defenses above" and sufficient for them to "terminate" plaintiff." Although this affirmative defense could have been more clear, a fair reading indicates that defendants are contending that they believed they had a good faith reason to terminate their relationship with the plaintiff. The seventh affirmative defense is labeled as one for comparative negligence. Although a claim of comparative negligence is obviously not applicable to causes of action sounding in contract, this affirmative defense is specifically directed to the cause of action for breach of the implied covenant of good faith and fair dealing, and appears to be alleging bad faith on the part of the plaintiff rather than comparative negligence per se. The general and special demurrers of plaintiff Centennial Realty Brokerage & Investment Corporation to all ten affirmative defenses in the first amended answer of defendants Jeffrey Wolfe and Emily Wolfe, as trustees of the Jeffrey & Emily Wolfe Trust are OVERRULED. Defendants are to give notice.
5	Mann, et. al. v. Parkin, et. al.	The motion by Defendant/Cross-Complainant Drew Parkin ("Parkin"), to compel Plaintiff/Cross-Defendant Alex Mann ("Mann") to provide responses to Requests for Production, Set One, is DENIED. Parkin asserts that responses were not timely served and that he therefore seeks an order compelling responses without objections pursuant to CCP §2031.270. Parkin states that Requests for Production of Documents, Set One, were served by email on 5/25/23. A subsequent two week extension was granted to respond. This made the responses due on 7/12/23. Attached to his Opposition, Mann submits a copy of the responses along with a proof of service signed by Cliff Schneider showing the

		responses were served on 7/11/23. Although Parkin claims he never received the responses via U.S. Mail, he did receive a courtesy copy of the responses one month before filing the subject motion. The crux of Parkin's argument in his motion is that Mr. Schneider cannot be trusted and that he fabricated the proof of service. However, Mr. Schneider has submitted a declaration detailing the process he followed in serving the discovery responses. Parkin's "metadata" argument not only lacks foundation but is specifically addressed by Mr. Schneider. The Court also notes that Parkin's argument he did not receive the responses in the mail turns in part on the assumption that Mr. Smith is more trustworthy than Mr. Schneider, when both are officers of the Court. The Court will not make this assumption. Accordingly the motion is DENIED. CCP §2031.310(h) states that the court shall impose sanctions against "any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." Here, Parkin lacked substantial justification for filing the subject motion. Accordingly, the Court GRANTS Mann's request for sanctions and ORDERS Drew Parkin to pay sanctions of \$1,815 to Alex Mann, through his attorney of record, within 30 days. Counsel for moving party is ordered to give notice of this ruling.
6	Nachtrieb v. County of Orange	O/C
7	Pressney vs. Intermarketing Media, LLC	Plaintiff John Pressney's ("Plaintiff") Motion to Compel ("Motion") defendant Intermarketing Media, LLC dba Resort Advisory Group's ("RAG") initial responses to Requests for Production, Set Two ("RFP") is TENTATIVELY GRANTED. RAG improperly failed to serve any response to the RFP, and only lodged an objection in its opposition to the Motion. However, the objection is one based upon third-party privacy rights, which are important and protected under the state Constitution. (Cal. Const., art. I, § 1.)" (<i>Williams v. Superior Court</i> (2017) 3 Cal. 5th 531, 552 ("<i>Williams</i>").) "Unless otherwise limited by order of the court . . . any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action . . . if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. . ." (Civ. Proc. Code § 2017.010.)